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THE SUPERIOR COURT OF THE STATE OF WASHINGTON
IN AND FOR THE COUNTY OF WHATCOM

CLARK BOURGAULT, an Individual, Plaintiff, vs. CITY OF BELLINGHAM POLICE DEPARTMENT, CITY OF BELLINGHAM, and JOHN and JANE DOE 1-10, Defendants.	**NO.** 23-2-00337-37 **CITY OF BELLINGHAM'S AND BELLINGHAM POLICE DEPARTMENT'S ANSWER TO COMPLAINT FOR DAMAGES** Judge Evan Jones

COMES NOW Defendants, City of Bellingham ("City") and Bellingham Police Department ("BPD"), by and through its/their undersigned attorneys of record, and answer Plaintiff's complaint by admitting, denying, and alleging as set forth below. Each and every allegation of Plaintiff's complaint not specifically admitted below is denied. The numbering below corresponds to the numbering in Plaintiff's complaint.

ORIGINAL

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210 Lottie Street
Bellingham, Washington 98225
Telephone (360) 778-8270

I. INTRODUCTION

1. The Defendants admit the first sentence. With reference to the second sentence, the Defendants deny instructing any employees to request an accommodation. The Defendants admit the third and fourth sentences. The Defendants deny the remaining sentences.

2. Plaintiff's statement requires no response by the Defendants. To the extent a response is required, the Defendants deny.

3. Plaintiff's statement requires no response by the Defendants. To the extent a response is required, the Defendants deny.

II. JURISDICTION AND VENUE

4. Admit.

5. Plaintiff's statement requires no response by the Defendants. To the extent a response is required, the Defendants deny.

6. Admit.

7. Deny.

III. PARTIES

8. Deny.

9. The Defendants deny the first sentence and admit the second sentence.

10. Plaintiff's statement requires no response by the Defendants. To the extent a response is required, the Defendants deny.

11. Deny.

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IV. FACTS

12. Admit.

13. Admit.

14. The Defendants admit the first sentence. The Defendants deny the second sentence.

15. Deny.

16. The Defendants admit that the Plaintiff was terminated but deny the remainder.

17. Admit.

18. Admit.

V. FIRST CAUSE OF ACTION

19. The Defendants incorporate herein their responses to the allegations set forth in paragraphs 1 through 18 of the Complaint.

20. States a conclusion of law that requires no answer.

21. Deny.

22. Deny.

23. Deny.

24. Plaintiff's statement requires no response by the Defendants.

VI. SECOND CAUSE OF ACTION

25. The Defendants incorporate herein their responses to the allegations set forth in paragraphs 1 through 24 of the Complaint.

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26. States a conclusion of law that requires no answer.

27. States a conclusion of law that requires no answer.

28. States a conclusion of law that requires no answer.

29. Deny.

30. States a conclusion of law that requires no answer.

VII. PRAYER FOR RELIEF

Plaintiff's prayer for relief requires no response by the Defendants. To the extent a Response is required, the Defendants deny generally the relief requested.

VIII. RESERVATION OF RIGHTS

The City reserves the right to supplement or amend this answer, including the assertion of additional affirmative defenses, based upon further investigation and discovery into Plaintiff's claims.

IX. AFFIRMATIVE DEFENSES

The Defendants assert the following affirmative defenses and reserve the right to amend based on the discovery of additional facts:

A. The Defendants deny that they are in any manner responsible for Plaintiff's alleged injuries and damages.

B. The Defendants have exercised reasonable and due care in all respects relative to the subject of this litigation.

C. Plaintiff has failed to state a claim upon which relief can be granted.

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D. Plaintiff cannot prove the necessary elements of any of his claims and causes of action.

E. The Defendants' actions were taken for legitimate, non-discriminatory, and non-retaliatory reasons.

F. Plaintiff may have failed to mitigate damages, to the extent damages exist.

G. Plaintiff's claims may be barred by the applicable statutes of limitations.

H. With regard to the claims brought under Title VII, Plaintiff is precluded from recovering for any unlawful acts alleged to have occurred more than 300 days prior to filing his Charges of Discrimination.

I. Plaintiff's claims against the Bellingham Police Department (BPD) may be barred because the BPD is not a separate entity capable of being sued.

J. At all times material to this action and the allegations set forth in the Complaint, Defendants acted lawfully and in good faith and without any intent to deny Plaintiff any rights under federal, state or local law.

K. Plaintiff failed to adequately engage in the interactive process.

L. The accommodations Plaintiff requested were unreasonable and/or posed undue hardship on Defendants.

M. The accommodations Plaintiff requested were unreasonable, as they would have infringed on the rights and safety of other employees.

N. Plaintiff's alleged damages were caused in whole or in part by Plaintiff's own conduct.

O. Plaintiff may have failed to exhaust his administrative remedies.

P. Service of process may have been insufficient.

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REQUEST FOR RELIEF

The City requests the following relief:

1. Dismissal of Plaintiff's complaint with prejudice.

2. Award of attorney's fees and costs to the City as allowed by law.

3. For such other and further relief as the Court deems just and proper.

Respectfully submitted this 16th day of March, 2023.

CITY OF BELLINGHAM

Sarah W. Chaplin, WSBA #51642
Sr. Assistant City Attorney

CITY OF BELLINGHAM

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Sr. Assistant City Attorney

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